



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

October 20, 2023

Memorandum for: Deputy Commissioner, Trials

Re: **Sergeant Danilo Cruz**
Tax Registry No. 940040
Manhattan Court Section
Disciplinary Case No. 2022-27047

The above named member of the service appeared before Assistant Deputy Commissioner Jeff S. Adler on May 9, 2023, and was charged with the following:

DISCIPLINARY CASE NO. 2022-27047

1. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about August 24, 2022, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Cruz engaged in a physical altercation with an individual known to the Department, causing injury.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about and between July 5, 2022 to July 16, 2022, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Cruz engaged in a physical altercation with an individual known to the Department, causing injury.

A.G. 304-06, Page 1, Paragraph 1

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3. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about December 29, 2021, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Cruz engaged in a physical altercation with an individual known to the Department, causing injury.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

4. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about and between July 5, 2022 to July 16, 2022, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Cruz knowingly acted in a manner likely to be injurious to the physical, mental or moral welfare of a child known to the Department who is less than seventeen years old.

A.G. 304-06, Page 1, Paragraph 1
Penal Law § 210.60

PROHIBITED CONDUCT
ENDANGERING THE
WELFARE OF A CHILD

5. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about December 29, 2021, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Sergeant Cruz knowingly acted in a manner likely to be injurious to the physical, mental or moral welfare of a child known to the Department who is less than seventeen years old.

**A.G. 304-06, Page 1, Paragraph 1
Penal Law § 210.60**

**PROHIBITED CONDUCT
ENDANGERING THE
WELFARE OF A CHILD**

6. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about August 24, 2022, wrongfully failed to make a timely notification to the Operations Unit after an off-duty incident. (*As added*)

A.G. 212-32, Page 1, Paragraphs 1-2

**OFF DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF THE SERVICE**

7. Said Sergeant Danilo Cruz, while off-duty and assigned to the Police Academy, on or about and in between July 5, 2022 and July 16, 2022, wrongfully failed to make a timely notification to the Operations Unit after an off-duty incident. (*As added*)

A.G. 212-32, Page 1, Paragraphs 1-2

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A.G. 212-32, Page 1, Paragraphs 1-2

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In a Memorandum dated June 9, 2023, Assistant Deputy Commissioner Jeff S. Adler found Sergeant Danilo Cruz guilty of all Specifications, after Sergeant Cruz entered a plea of guilty to all Specifications in Disciplinary Case No. 2022-27047. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Sergeant Cruz has been found guilty, and deem that, in light of the severity of Sergeant Cruz's misconduct, separation from the Department is warranted. However, instead of an outright dismissal from the Department, I will permit an alternative manner of separation from the Department for Sergeant Cruz at this time.

It is therefore directed that an *immediate* post-trial settlement agreement be implemented with Sergeant Cruz in which he shall forfeit thirty (30) suspension days without pay (already served), forfeit thirty (30) suspension days (to be served), be placed on one (1) year dismissal probation, forfeit all time and leave balances, and immediately file for vested-interest retirement.

Such vested-interest retirement shall also include Sergeant Cruz's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Sergeant Cruz does not agree to the terms of this vested-interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented ***IMMEDIATELY***.

A handwritten signature in black ink, reading "Edward A. Caban". The signature is fluid and cursive, with a long horizontal stroke at the end.

Edward A. Caban
Police Commissioner



POLICE DEPARTMENT

June 9, 2023

-----X
In the Matter of the Charges and Specifications :

- against - :

Sergeant Danilo Cruz :

Tax Registry No. 940040 :

Manhattan Court Section :

Case No.

2022-27047

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Megan Forbes, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Eric Sanders, Esq.
The Sanders Firm, P.C.
30 Wall Street, 8th Floor
New York, NY 10005

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

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OFF DUTY INCIDENTS
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REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 9, 2023. Respondent, through his counsel, entered a plea of Guilty to the charged misconduct, and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I recommend that Respondent forfeit thirty (30) days previously served on suspension without pay, an additional thirty (30) vacation days, counseling, and that he be placed on one-year dismissal probation.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent has pleaded guilty in connection with three separate domestic incidents involving family members: the first incident was with his wife, while the second and third were

with his daughter and son, respectively, each of whom was a minor at the time. Respondent also admitted that he failed to notify the Department after each of these three domestic incidents.

Respondent testified that at the time of the three incidents, he was experiencing financial stress, stemming from his desire to be a good parent and provider; his salary was the primary source of income for the family, and they had to pay for private school for all three children, as well as the costs for multiple sports and music activities for the kids. To deal with his money concerns, he was overextending himself in and out of work, “putting too much on his plate,” forcing him “to juggle a lot of stuff at the same time.” (Tr. 25-27, 45)

The most recent incident occurred on August 24, 2022. Respondent testified that the family had plans to drive to Pennsylvania to see their older daughter’s first college soccer game. Earlier in the day, Respondent was busy studying for the lieutenant’s exam, and was expecting his wife to have everything packed and loaded for their trip. When it was time to go, the car was not yet loaded, and Respondent was upset by the delay. They finally set out, with his wife driving, Respondent in the front passenger seat, and their minor daughter in the back. (Tr. 20, 30-31)

As they began their ride, Respondent and his wife argued about their late departure. Respondent testified that he became frustrated and briefly lost his self-control. As he was attempting to push his wife, Respondent, with his phone in his hand, extended his arm towards his wife’s face, striking her with the phone near her eye, causing bruising. They pulled over, switched drivers, and briefly continued on their way, before his wife asked Respondent to pull over again and let her out because she did not want their older daughter to see her with the bruising on her face. Since they were still within several blocks of their home, Respondent

complied, and his wife walked home; Respondent and his younger daughter continued on to see the soccer game, without notifying the Department of what had transpired. (Tr. 20-21, 32-36)

Respondent also admitted his guilt in a second matter, which took place sometime between July 5 and July 16, 2022. Respondent testified that he confronted his daughter, who was 11 or 12 at the time, about her room being very messy. They argued, and he struck her one time in the back with a belt. His daughter started crying, and Respondent, who immediately felt bad, hugged and kissed her. At trial, Respondent fully acknowledged that it was not right to hit her with a belt. Respondent did not notify the Department regarding this incident. (Tr. 22, 37-40)

The other incident occurred on December 29, 2021. Respondent testified that he was arguing with his wife when their 15-year-old son tried to intervene. The son positioned himself between his parents, and Respondent pushed him away, telling him not to get involved. When his son tried to intervene a second time, Respondent again pushed him away and held him against the wall. Respondent said to him, "Son, you're right, we'll stop. I'm not gonna argue with mom anymore," and the matter ended. Respondent testified that his son is a good kid, who was right to try to break up the argument between his parents. Again, Respondent did not notify the Department of this incident. (Tr. 22-24, 40-45)

With respect to all three incidents, Respondent testified that he knew he was wrong the instant they happened. He acknowledged that he failed his wife and kids, and fell short of upholding his sworn oath as a police officer. Early on, Respondent "took ownership" of his actions by admitting his wrongdoing during his official Department interview, and later by pleading guilty at this trial; Respondent explained that he is reunited with his family, and did not want to subject his family to reliving the incidents by coming to court. Respondent also testified

that since he was suspended, he has taken steps to change for the better: on his own, he voluntarily enrolled in and completed a parenting class, a batterer intervention program, and an anger management course, and also remains in a Department mandated domestic violence class. He stated that he has learned to appreciate the moment, and to be content with what God has given him. (Tr. 17-20, 27, 45-47)

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on January 9, 2006, has pleaded guilty to all of the charges against him, involving three separate incidents. The Department Advocate argues that Respondent's commission of three domestic violence offenses against his family members warrants termination from the Department. Counsel for Respondent emphasizes that financial stress was a contributing factor in Respondent's misconduct, that Respondent already has taken positive steps to regain trust and to redeem himself, and therefore suggests that a penalty of 30 vacation days and dismissal probation is appropriate.

As a starting point, the most serious of the three incidents is the one involving his wife in the car. Even if Respondent was merely attempting to push his wife, and not intending to cause physical injury to her face, he remains responsible for his actions. With a phone in his hand he deliberately extended his arm toward his wife, causing bruising near her eye, and there must be

appropriate accountability. The presumptive penalty for this misconduct is 30 suspension days, dismissal probation, and counseling.

The remaining two incidents, though not as serious as the first matter, warrant the forfeiture of additional penalty days. In one case, Respondent admitted to striking his daughter, one time, with a belt. Respondent explained that he was concerned, as a parent, with his daughter's messy room. To his credit, Respondent immediately recognized his actions were wrong, and quickly tried to comfort his daughter. In the other matter, Respondent conceded that he wrongfully pushed away his son, and briefly held him against the wall, as he was attempting to intervene in a verbal argument between his parents. At trial, Respondent praised his son for trying to break up the argument, and explained that he immediately reassured his son that he and his wife would stop quarrelling.

To be sure, it is troubling that Respondent engaged in domestic incidents with family members on three separate occasions. Two of these incidents, though less serious, involved his minor children. The third, the altercation in the car, occurred with his daughter in the back seat. On none of the three occasions did Respondent notify the Department of what had transpired, a further aggravating factor.

However, after carefully observing Respondent on the witness stand, and taking into account his 17 years of service to the Department, as well as the constructive steps he has taken to address his behavior so that there will not be a recurrence, I conclude that separation from the Department is not warranted. At trial, Respondent readily accepted responsibility for the three incidents. He came across as genuine when he explained that he knew he was wrong the instant the incidents happened, and that he regrets having failed as a husband and a parent.

To his credit, Respondent has taken steps to change for the better, and to conform his behavior to the standards required of law enforcement officers. While on suspension he made productive use of his time, as he voluntarily enrolled in and completed several programs, while also participating in a Department mandated domestic violence class, which he continues to attend. Respondent presented letters confirming his program participation, including one attesting to his “great progress” in the OASAS program, where he has expressed “remorse” for what happened, and “taken responsibility” for his actions. As he testified, it was clear how devoted Respondent is to his children. He has come to understand that the financial stress of paying for his kids’ private schools, as well as their extracurricular activities, led him to overextend himself in an unhealthy way. With the help of the programs he has attended, he has adjusted his outlook and learned to appreciate what he has, including his family with whom he has reunited.

On balance, a forfeiture of 60 penalty days, and a period of monitoring, is a significant penalty that will adequately addresses the seriousness of the misconduct here, while also recognizing the context in which these incidents occurred, as well as the efforts Respondent has made to improve. Accordingly, I recommend as follows: that Respondent forfeit thirty (30) days previously served on suspension without pay, that he forfeit thirty (30) additional vacation days, that he comply with any additional counseling that the Police Commissioner deems appropriate, and that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner’s

discretion and may be terminated at any time without further proceedings.

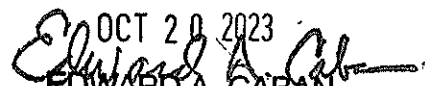
Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

DISAPPROVED

OCT 20 2023

EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
SERGEANT DANILO CRUZ
TAX REGISTRY NO. 940040
DISCIPLINARY CASE NO. 2022-27047

Respondent was appointed to the Department on January 9, 2006. On his three most recent annual performance evaluations, he received a 4.0 rating of “Highly Competent” for 2022, and 4.5 ratings of “Extremely Competent/Highly Competent” for 2020 and 2021. He has been awarded two medals for Meritorious Police Duty and two medals for Excellent Police Duty.

In connection with the present matter, Respondent was suspended without pay from August 24, 2022 through September 22, 2022.

In 2012, Respondent forfeited 30 vacation days and was placed on one-year dismissal probation after he pled guilty to destroying a summons he issued to another member of service, and making a misleading statement about his actions at an official Department interview.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials